ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	107th Commission Meeting
DATE:	07 December 2022 & 13 December 2022
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1.	**Regular update on HR – HRS** *The Asst. HRO apprised the Commission on decisions of the 80th HRC and other issues on the HR as follow:* • *The selection of candidates for the vacancies announced. From the total of 15 officers recruited, six are on lateral transfer and nine on contract.* • *The RCSC has approved one Asst. ICT Officer for ICTS and one Asst. IPO for EMD both with the IT background from the 2022 RCSC selected technical graduates to be placed in the ACC with effect from 1 January 2022.* • *The issue related to financing of the Financial Specialist Investigation Training from the GoI fund to which the expenditure has to be booked from the Justice Sector Project fund.* • *The ACC is in receipt of the letter from the Election Commission of Bhutan requesting for lists of interested officials to participate as the Returning Officers and National Observers for the upcoming Parliamentary elections. To this, the HRC decided to invite expressions of interest from the officials.*	**Regarding the ECB's letter requesting for the lists of interested officials to be deployed as the Returning Officers (RO) and National Observers (NO), the Commission will first find out whether the communication received is in response to the ACC's proposal presented to the ECB during the meeting conducted on 9 November, 2022. To this, the Commission will first communicate with the ECB, if ACC officials can be engaged as a member or advisor to the Dispute Settlement Body given the relevant expertise rather than as RO and NO. However, if they stand with their decision to only engage the officials as RO and NO, the HRS can invite officials to express their interest. To this, the HRC's decision to float for the expression of interest was directed to keep on hold.** **Given that the Mandatory training for the new recruits and officials on lateral transfer is due to be conducted in the second week of January 2023, the HRS was directed to expedite the budget requisition process from the RCSC while also cautioning all expenditure including Travel Allowance and Daily Subsistence Allowance associated with the training to be comprehensively captured in the fund request. In addition, the HRS was directed to also correspond with the Royal Audit**

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	• *Additional resignation letters received from the two officials. In addition, the change in the relieving date of Tenzin Penjor, IPO of DoI to 3 January, 2023 as against the initial proposed date of 3 February, 2023.* • *The Asst. HRO to attend Competency Based Framework (CBF) Training of Trainers and cascading workshop from 12 – 16 December 2022.* • *The engagement of Director, DoPS for the National Day dance practice.*	**Authority on availing Professional Development Centre for the training. Moreover, the regional team members who have attended the last batch of mandatory training to be included during the delivery of the investigation module.** **As for the relieving of the officials, respective Heads to ensure that the works in hand are completed.**
2.	**Regular update on the IVS – DoPS & LD** *The DoPS with the aim to launch the Integrity Vetting System by end of the December 2022 presented the sample of Integrity Vetting Report for the general purpose to be shared with the consultant..*	**The Commission endorsed the IVR sample and directed it to share with the consultant.** ***(The finalized sample reviewed and endorsed by the Commission is attached as Annex I)***
3.	**Update on the IACD – ED** *The ED presented its final update on the activities designed for the commemoration of the IACD along with the revised program list. In addition, the Division also sought the Commission's endorsement on serving high tea including the Regional Offices.* *The Division also presented the revised logo for the integrity badge.*	**The Commission in principle endorsed the activities and program list with following directions:** • **To include the youngest staff for the assessment of posters while ensuring gender balance.** • **To include Directors for giving remarks instead of the Commissioners.** • **The Commission endorsed the Division's proposal to serve high tea to the staff including those in Regional Offices.** • **As for the logo, directed to replace the *Drilbu* logo positioned at the top of the logo between the text 'Anti-Corruption Commission' and 'Bhutan Scouts Association' with the Dzongkha word 'DAMTSI'.**
4.	**Present proposed revision of the Asset Declaration Rules 2017 – ADMD** *The Division as recommended by the Legal Division proposed for the revision of Asset Declaration Rules (ADR) 2017 in entirety for*	**The Commission endorsed the revision of the ADR 2017 in entirety. Additionally, the specific rules proposed for revision were reviewed individually (The Finalized Rule as reviewed by the Commission is attached**

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	the effective implementation as the rule-wise revision will invite unnecessary implementation issues and create user confusion thereby giving leeway for them to not comply with the Rules. *Towards bringing more clarity in the existing ADR 2017 and to offset certain implementation issues associated with it, some of the rules proposed either for changes, deletion or new insertion are as follow:* • *Rules related to filing and frequency of the Asset Declaration (AD).* • *A new rule on whether covered persons on leave with half-pay/without pay for one year or more are required to file AD or not.* • *A new rule requiring a person on suspension to file AD.* • *Rules related to Roles and responsibilities of the Head of Agency (HoA).* • *Rules related to collection and deposit of fine.* • *Deletion of the rule on failure to comply with the lawful demand as against the earlier proposal to insert one.*	**as Annexure II). Some of the directions of the Commission are as follow:** • **Regarding the new rule related to persons on leave with half-pay/without pay for one year or more not requiring to file AD during that period, the Commission directed to include the requirement to file the AD after the resumption of office.** • **Include contract employees recruited for a year or more or extended beyond a year to file AD.** • **Incorporate AD as one of the requirements for issuing No Objection Certificate by the agency for financial benefits on separation from the service.** • **Include a clause granting a time extension for clearing the penalty if the Commission is satisfied that there is an adverse impact on the sustenance of the livelihood of the defaulting covered person because of the requirement to pay the fine.** • **Include a clause underscoring that the procedures for collection of fines & penalties set out in the ADR will not limit the Commission to move or cause the OAG to move the competent court of jurisdiction.** • **PPD to explore ways to include the Financial Transfer made by the Commission in the Annual Report.** **Regarding the deposit of the penalties and fines into the Government Revenue Account, the Commission suggested if it could be parked into the Government CD Account (Escrow Account) maintained by the Commission. However, the Division was directed to gauge how practically**

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		feasible it is and accordingly effect the changes in the ADR or retain as required. **As for the Commission's recommendation to park the penalties collected into Escrow Account, the Commission reiterated that it must not be construed as Commission pursuing prejudicial agenda predisposed to favor the Commission. Such options are being explored with the intention to convey the engagement of the Commission other than the primary mandates as the Department of Professional Support is already dedicating a substantial amount of time in managing it. In addition, the proper accounting of such fines and penalties will also complement in demystifying the misconception that fighting corruption is expensive. Moreover, it must also be understood that the Escrow Account is auditable.** **Further, the Commission directed the Division to finalize the Rules and prepare for the launch during the Foundation Day on 31 December, 2022. To this, directed to coordinate with the Information & Media Officer for the Press Release.**
5.	**Follow-up presentation on network revamping – ICTS** *In continuation to the decision of the 106th Commission meeting requiring ICTS to come up with the technical calculation, the ICTS apprised that considering the current bandwidth of 66 mbps, the bandwidth per user (considering 200 users) is 0.33 mbps.* *The ICTS also presented the features of the Vista Manager that they will be purchasing along with the PoE switches. (Presentation slides attached as Annex III)* *Going forward, if the Commission endorses the proposal, the ICTS apprised that they will work on increasing the bandwidth, providing dedicated bandwidth to the meeting rooms where important seminars*	**To this, the Commission endorsed the proposal and directed to go ahead with the implementation. Some of the specific directions are:** • **Institute a mechanism to book the rooms to facilitate allocation of dedicated bandwidth as and when there are important meetings OR integrate into the Secretariat Services' system currently being developed.** • **As for the funding, directed to discuss with the Project Component Manager of the ADA.**

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	are scheduled and developing an online database to monitor network status.	
6.	**Others:** **Observing Foundation Day** *With the Foundation Day in the offing, the Commission directed PPD & SS to prepare a proposal for marking the Day and to present it during the 108th Commission meeting.*	**To this, directed to include Directors, Offtg. Director, Heads/Offtg. Heads of the Divisions and Regional Heads during the discussion.**

Commissioner **Commissioner** **Chairperson**

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Annex I



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ACC

ANTI-CORRUPTION COMMISSION

Integrity Vetting System (IVS)

Department of Professional Support

FOR GENERAL PURPOSE (Promotion, Recruitment , Nomination and Award of Contract)

- No Record
- Provisional Record
- Record
- Adverse Record

Application no. **Date:**

INTEGRITY VETTING REPORT

The Anti-Corruption Commission is pleased to inform that there is **no adverse record** against **Mr/Mrs…… CID No. ……... Designation……. Agency Name**…...with the Commission as of **date**.

This report is issued in accordance with Section 24(1)(a) and (j) and Section 25(1)(h) of the Anti-Corruption Act of Bhutan 2011 to promote and mainstream integrity in the public and private sectors. This report shall be used for the intended purpose only.

ACC Chairperson

Application no. **Date:**

INTEGRITY VETTING REPORT
(Provisional Record)

The Anti-Corruption Commission would like to inform that a complaint has been registered against **Mr/Mrs…… CID No. ……...** with the Commission and there is:

- □ Pending Investigation;
- □ Ongoing Investigation;
- □ Pending Administrative Action; or
- □ Pending Trial.

This report is issued in accordance with Section 24(1)(a) and (j) and Section 25(1)(h) of the Anti-Corruption Act of Bhutan 2011 to promote and mainstream integrity in the public and private sectors. This report shall be used for the intended purpose only. This report shall be used for the intended purpose and confidentiality maintained.

The requesting agency is hereby advised to either refrain from employing, promoting, nominating and/or entering into contractual relations with Mr/Mrs…… OR postpone the decision until such time that the case against him/her has been formally and legally concluded.

ACC Chairperson

Application no. **Date:**

INTEGRITY VETTING REPORT
(Record)

The Anti-Corruption Commission would like to inform that a complaint has been registered against **Mr/Mrs…… CID No. ……...** with the Commission and:

- □ Is convicted for the offences of petty misdemeanor and below.
- □ Is ordered for alternative sentences in lieu of imprisonment such as civil commitment and/or commutation of sentences Civil sanctions in the forms of fine or penalty.
- □ Is ordered for the compensatory damages, confiscation or recovery in absence imprisonment.
- □ There is non-compliance record on Asset Declaration Rules including the verified disproportionate assets
- □ There is unsuccessful Impeachment of Holders of Constitutional Offices; and
- □ Disciplinary sanctions imposed by relevant tribunal or agency.

This report is issued in accordance with Section 24(1)(a) and (j) and Section 25(1)(h) of the Anti-Corruption Act of Bhutan 2011 to promote and mainstream integrity in the public and private sectors. This report shall be used for the intended purpose only. This report shall be used for the intended purpose and confidentiality maintained.

The requesting agency is hereby **required to take into consideration the above record** against Mr/Mrs …….. in deciding on whether or not to…….[employ, promote, nominate and/or entry into contractual relation as regards]

ACC Chairperson

Application no. **Date:**

INTEGRITY VETTING REPORT
(Adverse Record)

The Anti-Corruption Commission regrets to inform that as per its **Mr/Mrs…… CID No. ……...** has been implicated in the corruption case and has received a criminal conviction for the offences of misdemeanor and above .

This report is issued in accordance with Section 24(1)(a) and (j) and Section 25(1)(h) of the Anti-Corruption Act of Bhutan 2011 to promote and mainstream integrity in the public and private sectors. This report shall be used for the intended purpose only. This report shall be used for the intended purpose and confidentiality maintained.

The requesting agency **shall not** …..[employ, promote, nominate and/or enter into contractual relations] the above person.

ACC Chairperson

Annex II

THE ASSET DECLARATION RULES 2022

In exercise of the powers conferred by Section 38 (8) and Section 171 of the Anti-Corruption Act of Bhutan 2011 and Amendments thereunder, the Anti-Corruption Commission hereby frames and adopts this Rule for effective and efficient administration of Asset Declarations.

CHAPTER I

PRELIMINARY

1. This Rule shall be called the Asset Declaration Rules 2022.

Commencement

2. This Rule shall come into force with effect from such date as announced by the Commission by an order.

Repeal

3. The Asset Declaration Rules 2017 is hereby repealed.

Application

4. This Rule shall apply to all persons as prescribed in Annexure I and II (hereinafter referred to as the covered person). The list of covered person may be subject to change as and when deemed necessary by the Commission.

Objective of Asset Declaration (AD)

5. Objective of AD is to:

   (a) Detect and prevent illicit enrichment;

   (b) Promote public trust through accountability; and

   (c) Facilitate management of Conflicts of Interest (CoI) where:

      (i) The covered person holds additional job/employment (outside position);

      (ii) The covered person has entered into post employment arrangement; and

(iii) Spouse and/or dependents of the covered person has/have any interest that is in conflict with the discharge of the covered person's official function.

Objective of AD Rules

6. The objective of this Rule is to:

    a. Prescribe an AD system;

    b. Specify the time frame and frequency of AD;

    c. Prescribe procedures for administration of AD;

    d. Specify roles and responsibilities of the Central Asset Declaration Administrator (CADA), Head of the Agency (HoA) and Asset Declaration Administrator (ADA);

    e. Prescribe penalties for breach of this Rule; and

    f. Prescribe procedures for access to AD.

Rules of Construction

7. In this Rule, unless the context indicates otherwise, singular shall include plural and masculine shall include feminine and vice versa.

8. The term used in this Rule shall bear the same meaning as in the Act unless it is defined in this Rule.

CHAPTER II

ASSET DECLARATION

Registration in Online AD system

9. A covered person shall register in the online AD system to be able to file the declaration as required under this Rule.

Filing and Frequency of AD

10. A covered person shall file his/her AD as well as that of his/her spouse and/or dependent who is not a covered person as follows:

    a. Within three months after becoming a covered person or resuming office under Rule 21. However, a covered person is not required to file his/her annual declaration separately if his/ her declaration for assumption of office falls within the annual declaration period;

    b. Annually thereafter from **March 1** to **April 30**; and

    c. Within one month before ceasing to be a covered person for planned exit and within one month after ceasing to be a covered person for unforeseen exit. However, a covered person is not required to file his/her annual declaration separately if his/ her declaration for vacation of office falls within the annual declaration period;

    d. Without prejudice to sections 11, 12, 53, 54 and 55 of this Rule, a covered person shall be allowed to re-declare their initial declarations within 15 days after the return of declaration by respective ADAs.

11. Where a covered person has failed to file his/her declaration after one month of expiry of due date (April), he/she shall be allowed to file AD within one month (in May) but shall be considered as late declarant, and shall be liable for penalty as under Rule 53.

12. Where a covered person, upon return of their declaration by ADAs, fails to re-declare their declaration within the timeline provided under section 10(d) above, he/she shall be liable for penalty provided under section 53.

13. Where a covered person has failed to abide by Rule 11, he/she shall be considered as a non-declarant and shall be liable for penalty as under Rule 54. A covered person is required to pay the penalty under Rule 54 before the start of next declaration period failing which the declarant shall be liable for administrative and legal action as deemed fit.

14. Where a covered person has failed to file Assumption of office after the expiry of the timeline prescribed in Rule 10a, he /she shall be allowed to file AD within one month but shall be considered as late declarant and shall be liable for penalty as under Rule 53.

15. Where a covered person has failed to abide by Rule 46 a, he/she shall be liable for penalty as rule 54

16. Relieving order and post service benefits or any other completion certificates and references shall be granted by approving authority only upon filing AD for Vacation of office, along with other prescribed requirements.

17. A person shall cease to be a covered person once he/she no longer falls within the list under Schedule I or Schedule II.

AD Contents

18. A covered person's AD shall contain:

    (a) Reason for filling AD;

    (b) Personal information including his/her spouse and/or dependent; and

    (c) Assets, income and liabilities for the income year.

AD Obligations

19. A covered person shall file completely and truthfully his/her AD as well as that of his/her spouse and/or dependent who is/are not covered by this Rule. AD shall be made in the prescribed form given in Annexure IV

20. Where the declarant and his/her spouse and/or dependent are covered persons, they shall file their AD independently and without duplication.

21. A covered person who is on leave with half pay/without pay for one year or more is not required to file any declaration for that period. Such persons shall file their assets, income and liabilities of that period immediately upon resumption of office. However, a covered person is not required to file his/her annual declaration separately if his/ her declaration for assumption of office falls within the annual declaration period;

22. A covered person who is on suspension is required to file asset declaration.

CHAPTER III

ASSET DECLARATION ADMINISTRATION

Structure

23. There shall be an ADA in the agency who shall administer AD in that agency as per the roles and responsibilities specified in this Rule.
24. CADA in the Commission shall be responsible for the overall administration of AD of all covered persons.
25. A covered person under Schedule I shall file AD with the Commission.
26. A covered person under Schedule II shall file AD with the agency concerned.

Roles and Responsibilities

Head of Agency (HoA)

27. The HoA shall be responsible for supervision and monitoring of AD system, which shall include the following:
    a. Designate an ADA and notify the same to the Commission;
    b. Ensure that AD or information contained therein is secured and inaccessible to any person except as otherwise provided in this Rule;
    c. Examine AD for possible CoI situations in decision making process and manage them accordingly as per the CoI Guidelines;
    d. Incorporate provisions for disciplinary actions for breach of this Rule in the respective Service Rules/Code of Conduct;
    e. Incorporate AD as one of the requirements for issuing of No Objection Certificate by the agency for financial benefits on separation from the service;
    f. Ensure a contract employee recruited for a year or more or extended beyond a year file Asset Declaration.
    g. Impose penalties for late declarants of Schedule II
    h. Collect the penalties on late declarants of Schedule I and non-declarants of both Schedule I and II as imposed by the Commission.
    i. Submit the agency's AD report and the Action Taken Report(ATR) including the status of payment of fines by the non-declarants to the Commission within the stipulated time frame;
    j. Support and share information with the competent authority for verification; and
    k. Educate and advocate on this Rule within the agency.

Asset Declaration Administrator (ADA)

28. ADA of an agency shall:
    a. Be the focal person for all matters relating to AD in the agency;
    b. Ensure that new user(s) are registered in the online AD system;
    c. Prepare and update the list of declarants on a regular basis.
    d. Collaborate with other ADAs in preparing and updating the list of declarants concerning covered persons on deputation or secondment. Those on deputation/secondment for less than a year shall be included in the list of the parent agency and those more than a year in the list of the agency deputed/seconded.
    e. Where there is no online AD system, he/she shall facilitate timely distribution of forms to the declarants within the agency;
    f. Provide technical support for filing AD;
    g. Receive, manage and maintain AD;
    h. Enter particulars of AD received in hard copy in the online AD system;
    i. Examine completeness of AD at the time of receiving it;
    j. Implement decisions taken by HoA;
    k. Ensure that the fines levied against late declarants are collected and deposited with the Government Revenue Account;
    l. Prepare and submit the agency AD report to HoA within the stipulated time frame; and
    m. Maintain confidentiality of AD except as otherwise provided in this Rule.
    n. Ensure mandatory filing of Vacation of Office and provide timely information to relevant Division/Authority on the compliance of this requirement

Central Asset Declaration Administrator (CADA)

29. CADA shall:
    a. Be the focal person for all matters relating to AD;
    b. Ensure that new user(s) are registered in the online AD system;
    c. Prepare and update the list of declarants for Schedule I on regular basis;
    d. Where there is no online AD system, he/she shall facilitate timely distribution of forms to the relevant agency concerned;
    e. Provide technical support for filing AD;
    f. Receive, manage and maintain AD;
    g. Enter particulars of AD received in hard copy into the online AD system;
    h. Examine completeness of AD at the time of receiving it;
    i. Submit AD report for both Schedule I and Schedule II to the Commission within the stipulated time frame;

j. Identify and verify Disproportionate Asset (DA) cases;
k. Co-ordinate meetings of the Commission;
l. Implement the decisions of the Commission;
m. Ensure that the fines levied against a covered person under this Rule are collected and deposited with the Government Revenue Account; and
n. Maintain confidentiality of AD except as otherwise provided in this Rule.

CHAPTER IV

PROCEDURE FOR DECLARATION

30. The Commission shall notify the general public before the annual AD period.

At the Agency level

31. ADA shall prepare and submit the agency AD report to HoA within the 1st week of June.
32. AD report shall contain:
    a. List of covered persons who declared on time;
    b. List of late declarants;
    c. List of non-declarants;
    d. Master list of the Declarants.

33. ADA shall update the list of information and prepare the masterlist for the next AD.

34. HoA shall:

    a. Review AD report and submit to the Commission within the 2nd week of June;
    b. Impose penalty on the late declarants of Schedule II and implement the penalty imposed by the Commission on non-declarants of Schedule I and II and late declarants of Schedule I.
    c. Submit the Action Taken Report (ATR) including the status of payment of fines to the Commission by 2nd week of February of the following declaration year.

In the Commission

35. CADA shall prepare AD report for Schedule I within the 2nd week of June.

36. The content of the AD report shall be as above in Rule 32.

37. CADA shall compile AD reports of Schedule I and Schedule II and submit to the Commission for decisions within the 4th week of June.

38. The Commission shall take decisions on late declarants of Schedule I, non- declarants and DA cases of both schedule I and II and issue necessary directives to the agency concerned.

39. CADA shall, as decided by the Commission, impose penalties on the late declarants for Schedule I, and non-declarants for both Schedule I and Schedule II, and verify the DA

cases for all covered persons from CADA shall submit the final ATR on the penalties imposed and also present the DA findings to the Commission within the 2nd week of October.

40. The Commission shall take decision(s) on DA cases and also review ATR within the 3rd week of October. The Commission meeting on DA cases shall be attended by heads of Departments and relevant Divisions of ACC. W

41. Where a covered person is found to have DA as determined by the Commission, he/she shall be subject to Rule 57.

42. CADA shall prepare and submit the final AD report to the Commission within the 3rd week of February.

43. CADA shall update the information and prepare the master list for the next AD on regular basis.

Assumption and Vacation of Office

44. A covered person shall file his/her AD on assumption and/or vacation of office as per Rule 10 (a) and (c).
45. ADA/CADA shall:
    a. Examine completeness of AD at the time of receiving it; and
    b. Update the master list.

Access to Declarations

46. Any AD or copy thereof may be made available to an individual within five working days from the day of receipt of such application by the Commission, subject to the following conditions:
    a. Only in person;
    b. Only upon a written application (Annexure V) with justification by such a person; and
    c. Only after the Commission's scrutiny of such justification.
47. The Commission shall inform the covered person, whose AD the applicant has sought.
48. Notwithstanding rule 47 and 48 above, a copy of AD may be made available for the exercise of power and function under the relevant laws provided that it is not used as evidence for which proper judicial authorization is required from the competent court of jurisdiction.

Prohibitions of Unlawful use

49. A person shall not obtain or use an AD for:

a. Any unlawful purpose;
b. Any commercial purpose;
c. Determining the financial soundness of any individual; or
d. Solicitation of money for any purpose directly or indirectly.

50. Any rejection of an application shall require the Commission to provide the grounds for such rejection to the applicant.

Compliance Auditing

51. The Royal Audit Authority (RAA) may conduct compliance audit of AD in the agencies but subject to the prescribed confidentiality requirement of the declarations filed.

Preservation of Declaration

52. The agency concerned shall ensure safety and security of AD made and shall archive the data for a period of ten years.

CHAPTER V

PENALTY FOR BREACH

Late Declaration

53. If a covered person, without reasonable justification, declares late, he/ she shall be levied a fine equivalent to one day's national minimum wage for every day until such failure subsists.

Non-Declaration

54. If a covered person, without reasonable justification, fails to declare, he/she shall be levied a fine equivalent to one year's national minimum wage.

Incomplete Declaration

55. If a covered person files incomplete declaration without reasonable justification, he/she shall be levied a fine equivalent to one month's national minimum wage. Where a covered person without reasonable justification repeatedly files incomplete declarations, it may be deemed false declaration.

False Declaration

56. If a covered person knowingly makes false declaration with a view to conceal his/her assets, income and liabilities, it shall constitute an offence of 'False Declaration' under Section 64 of the Act and shall be dealt with accordingly.

Disproportionate Asset

57. If a covered person is deemed to possess DA, it may constitute an offence of 'Possession of Unexplained Wealth' under Section 60 of the Act and if it satisfy the elements thereunder, it shall be dealt with accordingly.

Repeated Offender

58. If a covered person repeatedly breaches the Rule, he/she shall be subject to appropriate disciplinary action in addition to fines levied.

Penalty for Unlawful use

59. Where a person uses AD information obtained for any purpose stated in Rule 49, he/she shall be levied a fine equivalent to one year's national minimum wage.

Asset Declaration Administrator

60. If an ADA fails to perform his/her roles and responsibilities without reasonable justification, he/she shall be subject to the following:
    a. For the first time: fine equivalent to one month's national minimum wage.
    b. More than once: appropriate disciplinary action in addition to the fines levied.

Central Asset Declaration Administrator

61. If CADA fails to perform his/her roles and responsibilities without reasonable justification, he/she shall be subject to the following:

    a. For the first time: fine equivalent to one month's national minimum wage.
    b. More than once: appropriate disciplinary action in addition to the fines levied.

Head of Agency

62. If HoA fails to perform his/her roles and responsibilities without reasonable justification, he/she shall be subject to the following:

    a. For the first time: fine equivalent to one month's gross salary.
    b. More than once: appropriate disciplinary action in addition to the fines levied.

63. For non-salaried Heads, the agency concerned shall be liable to pay a fine equivalent to one month's gross salary of a Head of similar agencies.

CHAPTER VI

MISCELLANEOUS

Collection and Deposit of Fine

64. The Commission shall, if the justification provided by the defaulting covered person on the breach of this Rule is found not reasonable, direct the HoAs concerned to collect the penalties from the salary of the defaulting covered person.
65. The fines levied under this Rule shall be collected through issuance of a receipt and accordingly deposited with the Government Revenue Account.
66. The penalty amount must be cleared by January 30 of the following declaration year. The Commission may accord reasonable time extension if the Commission is satisfied that there is an adverse impact on the sustenance of the livelihood of the defaulting covered person because of the requirement to pay the fine.
67. The preceding procedures for the collection of fines and penalties shall not oust the right of the Commission to move or cause the OAG to move the competent court of jurisdiction.

Amendment

68. The Commission may as deemed necessary, amend this Rule from time to time.

Definitions

69. Unless the context requires otherwise:
    a. **"Act"** means the Anti-Corruption Act of Bhutan 2011 as may be amended.
    b. **"Agency"** includes the Legislature, Judiciary, Ministry, Constitutional Offices, Autonomous Agencies, Corporations,Civil Society Organizations, Religious Organizations, Dzongkhags, Gewogs, Thromdes or a Statutory body of the Royal Government.
    c. **"Armed Forces"** has the same meaning as in the Act.
    d. **"Asset"** has the same meaning as in the Act.
    e. **"Autonomous Agency"** means an agency established and mandated to function with autonomy by the Royal Charters, Royal Kashos, Executive Orders or Acts of Parliament.
    f. **"Civil Society Organization"** shall have the same meaning as provided in the Civil Society Organization Act.

g. **"Commission"** means the Anti-Corruption Commission established under the Constitution and the Act.
h. **"Competent Authority"** refers to the Anti-Corruption Commission, the Royal Audit Authority, and such other agency with whom the Asset Declaration information may be shared by the Commission.
i. **"Convertible Asset"** refers to works of art, jewellery, gold and other objects.
j. **"Corporation"** means a legal entity that is created under the laws of the state designed to establish the entity as a separate legal entity having its own privileges and liabilities distinct from those of its members.
k. **"Covered person"** means any person using public resources as listed in Schedule I and Schedule II.
l. **"Declaration"** means the act of accounting of one's assets, income and liabilities in accordance with this Rule.
m. **"Dependent"** includes a covered person's children or any other person who is entirely dependent on the income of such covered person.
n. **"Disproportionate asset"** has the same meaning with the possession of unexplained wealth as defined in the Act.
o. **"False declaration"** means the act of declaring assets, income and liabilities with an intention to conceal their disproportionate assets by providing incomplete or incorrect information.
p. **"Incomplete Declaration"** means the act of not declaring all the assets, income and liabilities truthfully.
q. **"Financial Institution"** shall have the same meaning as in the Financial Services Act.
r. **"Income"** means all receipts by way of salary, TA/DA, mileage, fees, wages, perquisites, profits, gains, emoluments, rents and interests whether or not they are received as money or money's worth, commission, dividends, bonus, pension, gratuity, annuity or benefit.
s. **"Liability"** refers to an obligation arising from past transactions or events such as loans, personal borrowings, etc.
t. **"National Minimum Wage"** refers to the daily wage prescribed by the Government from time to time.
u. **"Other expenditures"** means the expenditure incurred for rent, insurance premium, loan repayment, vacation, rituals, etc.
v. **"Religious Organization"** shall have the same meaning as in the Religious Organization Act.
w. **"Teacher"** means all teaching professionals in schools, institutes, colleges and universities but not heads and deputy heads of these institutions.

ANNEXURE I

SCHEDULE I: SCHEDULED PUBLIC SERVANTS

a. The Lopens of Zhung Dratsang and Lam Netens of Rabdeys and other equivalent post holders;
b. The Prime Minister and Ministers;
c. The Chief Justice and Justices of the Supreme Court, Chief Justice and Drangpons of the High Court and Drangpons of Dzongkhag Courts;
d. The Speaker and Members of the National Assembly;
e. The Chairperson and Members of the National Council;
f. The Heads of Armed Forces;
g. The Chief of Police;
h. The Holders and Members of the Constitutional Offices;
i. The Secretaries to the Government including the Cabinet Secretary;
j. The Ambassadors and Consul Generals;
k. The Dzongdags;
l. The Chairpersons of Dzongkhag Tshogdus;
m. The Chairpersons of Thromde Tshogdes;
n. The Gups;
o. The Heads of Autonomous Agencies;
p. The Heads of Universities;
q. The Chairpersons and/or Chief Executives of Corporations including Financial Institutions;
r. The Heads of Civil Society Organizations;
s. The Heads of Religious Organizations; and
t. The Presidents of the registered political parties.

ANNEXURE II

SCHEDULE II: NON-SCHEDULED PUBLIC SERVANTS

1. All Public Servants including those on contract (one year or more or extended over a year) in Position Level P5/SS4 and above in Civil Service Agencies, Constitutional Offices and Autonomous Agencies.
2. Notwithstanding the above, public servants in the schools, training institutes and colleges shall not be included under Schedule II except for those holding the following positions:
    a. President;
    b. Dean;
    c. Principal;
    d. Vice principal; and
    e. Coordinator/member/office bearers of Programs/Committee that manages public resources and collections.

3. All Public Servants under the following occupational group irrespective of the Position Level:

    a. Administration and Support Services Group:
        i. Property and Procurement Management Services.
    b. Agriculture and Livestock Services Group:
        i. Agriculture Production Services
        ii. Agriculture Regulatory Services
        iii. Biodiversity Services
        iv. Dairy Development Services
        v. Extension Services
        vi. Feed and fodder development services
        vii. Horticulture Development Services
        viii. Livestock Health services
        ix. Livestock production services
        x. Mushroom development services
        xi. Plant protection services
        xii. Post production services
        xiii. Soil fertility and plant nutrition services
        xiv. Soil survey and land evaluation services
    c. Architectural, Engineering and Land Services Group:
        i. Architectural Services
        ii. Engineering Services

iii. Farm Mechanization services
iv. Geographic Information System Services
v. Geology and Mines Services
vi. Heritage Sites and Conservation Services
vii. Land Services
viii. Map Production Services
ix. Meteorology/Hydrology Services
x. Sanitary Services
xi. Survey Engineering Services
xii. Urban Design Services
xiii. Urban Development Control Services
xiv. Urban Planing Services

d. Finance and Audit Services Group:
   i. Audit Services;
   ii. Finance, Accounting and Budget Services;
   iii. Internal Audit Services; and
   iv. Revenue Services.

e. Foreign Services Group:
   i. Embassy, Missions and Secretariat Services;
   ii. Consular Services; and
   iii. Protocol Services.

f. Forestry and Environment Protection Services Group:
   i. Environment Services; and
   ii. Forestry Services.

g. Human Resource Services Group:
   i. Civil Registration and Census Services;
   ii. Immigration Services;
   iii. Human Resource Management and Development Services;
   iv. Training Services; and
   v. Industrial Relations Services.

h. Legal, Judiciary and Legislative Services Group:
   i. Judiciary Services;
   ii. Judiciary Support Services;
   iii. Legal Services;
   iv. Legislative Services;
   v. Integrity Promotion Services;
   vi. Election Services; and
   vii. Registration Services.

i. Medical and Health Services Group:
   i. Pharmaceutical Services (Regulatory Officers and Inspectors).

ii. Public Health Services (Health Assistants in Supervisory role)

j. Trade, Industry and Tourism Services Group:
   i. Trade Services;
   ii. Industries Services; and
   iii. Tourism Services.

k. Transportation and Aviation Services Group:
   i. Aviation Safety Services;
   ii. Aviation Communication and Navigation Services; and
   iii. Land Transport Services.

4. Mangmis;

5. Drungchens of Zhung Dratsang and Rabdeys and equivalent post holders.

6. All Officers of Armed Forces and others falling under the following occupational group:

   a. Procurement Services;
   b. Human Resource Services;
   c. Finance and Auditing Services;
   d. Engineering Services; and
   e. Legal Services.

7. All Officers of the Royal Bhutan Police and others falling under the following occupational group:
   a. Procurement Services;
   b. Human Resource Services;
   c. Finance and Auditing Services;
   d. Engineering Services; and
   e. Legal Services.

8. All Public Servants specified below:

   I. Employees of all Corporations including those on contract, in Position Level equivalent to P5/SS4 and above and those employees falling under the following occupational group:
      a. Procurement Services;
      b. Human Resource Services;
      c. Finance and Auditing Services;
      d. Engineering Services; and
      e. Legal Services.

   II. Employees of Financial Institutions including those on contract, in Position Level equivalent to P5/SS4 and above and those employees falling under the following occupational group:

a. Procurement Services;
b. Human Resource Services;
c. Credit and Loan Services;
d. Front desk and Inspection Services;
e. Engineering Services;
f. Legal Services.
g. Finance and Auditing Services; and
h. Banking services.

III. Employees of Civil Society Organization including those on contract, in Position Level equivalent to P5/SS4 and above and those employees falling under the following occupational group:

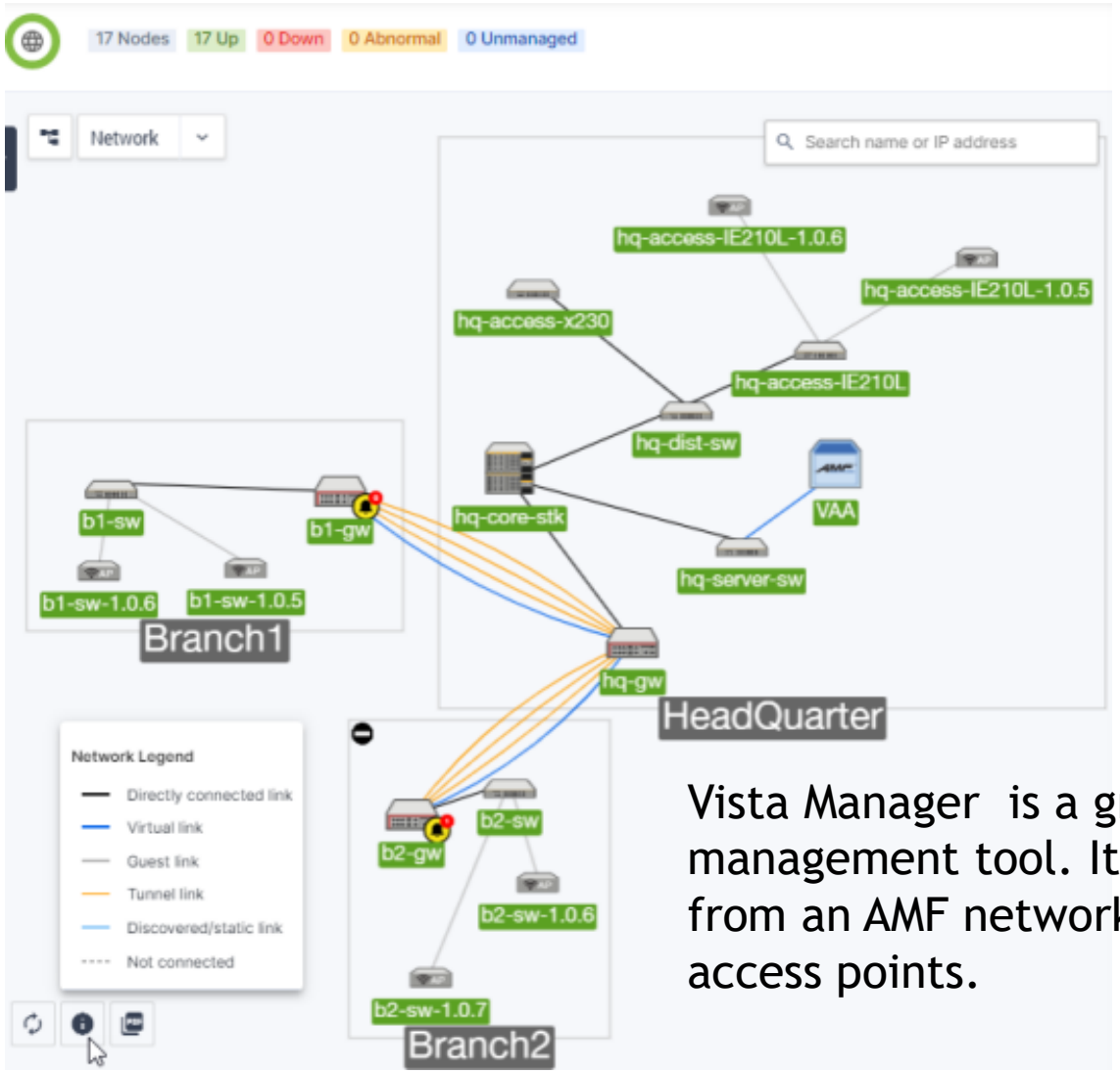
a. Procurement Services;
b. Human Resource and Program Services;
c. Finance and Auditing Services;
d. Engineering Services; and
e. Legal Services.

9. Any other officials as deemed vulnerable to corruption by the Commission and respective agencies.

Annex III

Optimization of Network Behavior

After Network Revamping.

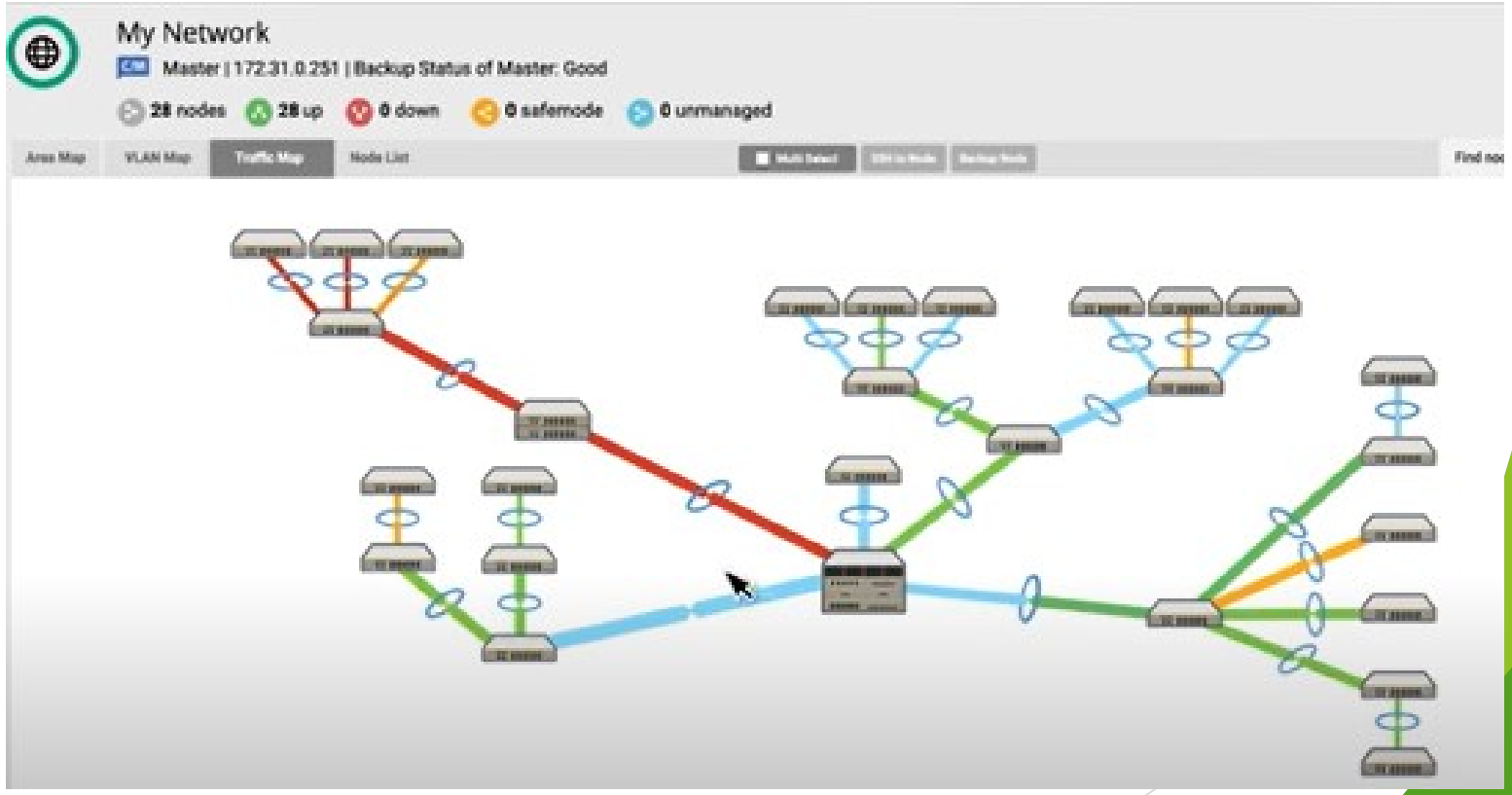


Vista Manager is a graphical network monitoring and management tool. It creates a complete topology map from an AMF network of switches, firewalls and wireless access points.

Virtual Lan (Network group)

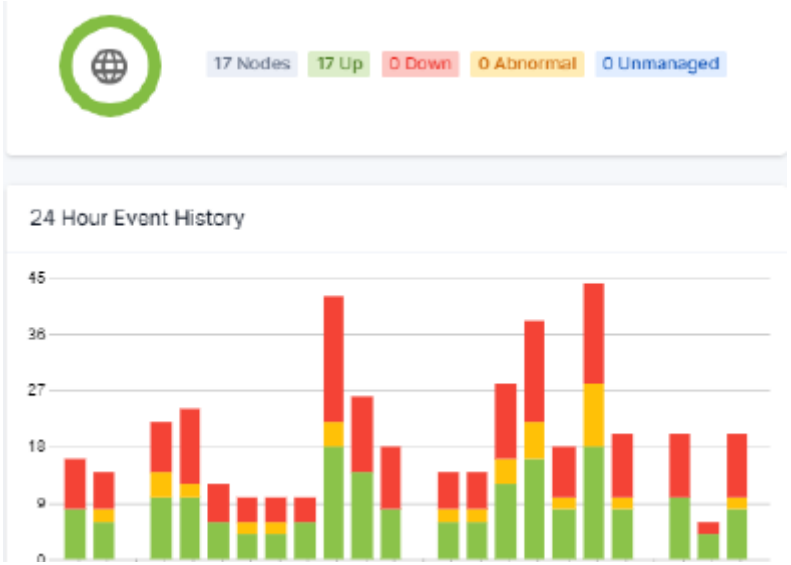
Vista Manager provides a single pane of glass graphical interface. Network managers often group similar users into a virtual LAN.

- To Maximize Performance.
- Increase Security
- Reduce administration overhead.



Event Log.

Display a list of events that are color coded red for critical, orange for abnormal and green for normal. Events can be filtered by status.



Recent Events

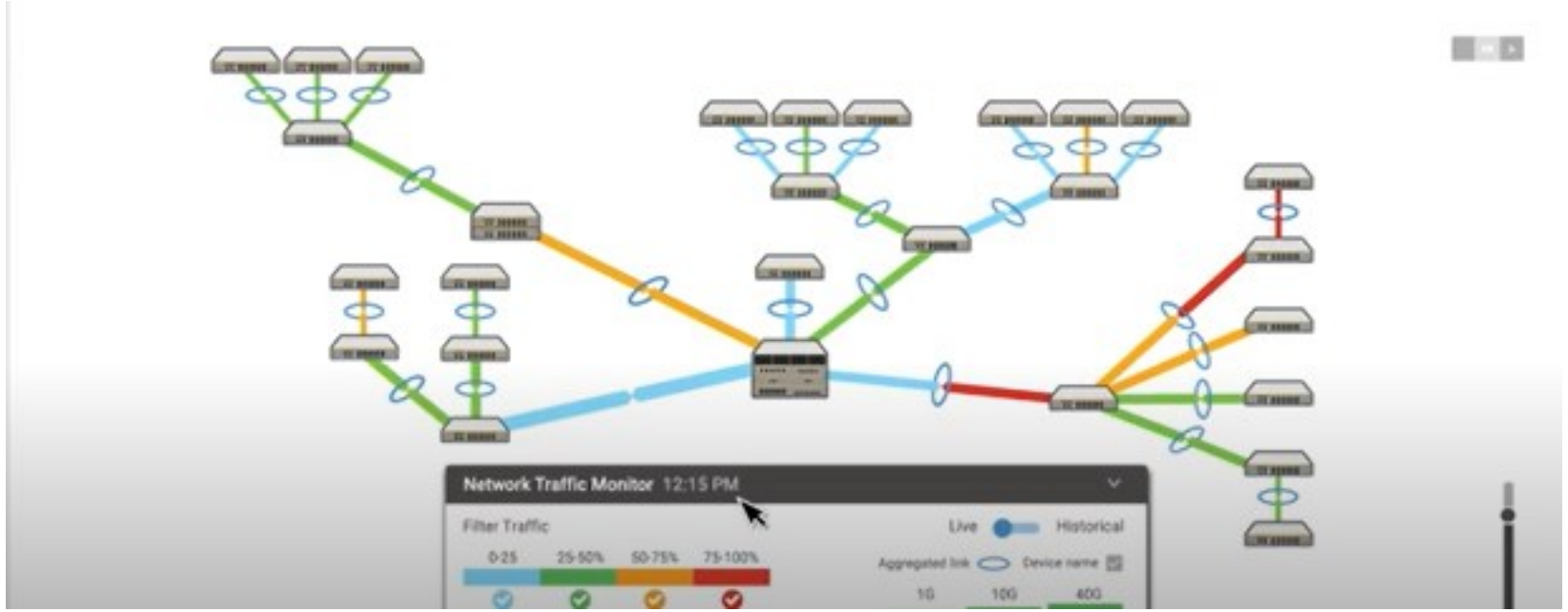
Filter By: All | Alarm | Critical | Abnormal | Normal

View Event Log

Timestamp	Node	Notes	Message
16:45:15 2020-07-28	b1-gw		Config has been backed up: default.cfg
16:37:22 2020-07-28	hq-gw		Running config updated - Requires save on node from Inventory Page
16:37:22 2020-07-28	b1-gw		Running config updated - Requires save on node from Inventory Page
16:36:24 2020-07-28	b1-gw		Config has been backed up: default.cfg

Traffic monitoring

Vista Manager's color-coded traffic monitoring map provides a visual status of network utilization, across all links in both directions. It constantly updated to keep the latest traffic pattern information readily available.



- Color and line thickness highlights the link utilization and available bandwidth for instant performance Monitoring.

The most bandwidth-intensive activities



Approx – Calculation of Bandwidth Usage at ACC (66mbps).

No.of User – 100 x 2 = 200 user (200/66 = 0.33 mbp/user)

Way forward

- Increasing the bandwidth.
- Identified places for important seminar will be provided with the dedicate bandwidth.
- Online network database will be developed to monitor the timely of the network status.

Cost Estimation

SL #	Particular	Qty	Unit	Unit Rate (Nu.)	Amount (Nu.)	Remarks
1	**L2 Managed PoE Switch** **- 24x 10/100/1000T PoE+ with 4x SFP+ ports** **- Dual Redundant Power Supply**	2	Nos	147,000.00	294,000.00	As per our earlier price quote
2	**Fibre Module 10Gig LR** **- 10Gbps single-mode 1310 nm fiber, LC interface** **- Up to 10 km, industrial temperature support,** **- Optical Digital Diagnostic and Monitoring (DDM) support**	4	Nos	43,000.00	172,000.00	As per our earlier price quote
3	AWC plugin for VistaMini (20 Nos)	1	Nos	50,000.00	50,000.00	New purchase
4	**9U Rack**	2	Nos	15,000.00	30,000.00	As per our earlier price quote
5	Fibre Ptch Cord, LC-LC, Single Mode, Duplex, 50mtr	2	Nos	10,000.00	20,000.00	As per our earlier price quote
6	RJ-45 Plug, (100 Nos per Packet)	1	Pkt	1,300.00	1,300.00	As per our earlier price quote
7	Accessories (Cassing Capping, Pipes, Pins, nails, etc)	1		35,000.00	35,000.00	New purchase
Total Amount (Nu.)					**602,300.00**	

Thank You